

Document Detail

Document Name:	ITIO Policy on Prevention of Sexual Harassment of Women at Workplace 2021_V1.0 (Internal)
Prepared & Advise By:	Ms. Jyoti & Ms. Ankita Tiwari
Prepared On:	01st January 2022
Version:	1.0
Revision 1:	01 st April 2024
Revision 2:	01 st April 2025
Effective Date:	15 th April 2025
Approved By:	Mr. Arun

Contents

1. Introduction to the Policy
 - 1.1 Introduction and Short Title
 - 1.2 Scope and Applicability
 - 1.3 Definition
2. Internal Complaint Committee
 - 2.1 Constitution of Complaint Committee
 - 2.2. Tenure of Internal Complaint Committee
 - 2.3. Powers of Internal Complaint Committee
 - 2.4. Roles & Responsibilities of Internal Complaint Committee.
3. Complaints for Sexual Harassment
 - 3.1 How to file Complaint?
 - 3.2 Procedure after receiving Complaint
 - 3.3 Procedure Adopted in Inquiry
4. Mechanism to Be Adopted
 - 4.1 Timeline for determining the Complaint
 - 4.2. Conciliation Procedure
 - 4.3 Procedure when found Guilty
 - 4.4. Fake and Frivolous Complaint
 - 4.5. Appeals
5. Obligations of Employers And Employees
6. Confidentiality
 - 6.1 Access to Reports and Documents:
7. Protection to Complainant / Victim
8. Training and Workshops
9. Preparation of Yearly Report
10. Revisions to the Policy
11. Conclusion

1. Introduction to the Policy

1.1 Introduction & Title

ITIO is the firm believer of the fact that all the employees have a right to be treated with respect and dignity irrespective of the caste, class, designation, religion and sex. ITIO is committed to create a safe work environment that is free from any form of sexual harassment. Further, ITIO is dedicated to maintain an environment which is free from coercion and intimidation. Hence any act of sexual harassment or related retaliation against or by any associate is unacceptable. This policy therefore, intends to prohibit such occurrences and also details procedures to follow when an associate believes that a violation of the policy has occurred within the ambit of all applicable regulations regarding Sexual Harassment.

ITIO Innovex Pvt Ltd

CIN U72300UP2015PTC070364 • GSTIN 09AADCE9392B1ZI • PAN AADCE9392B •

ITIO Tower • C 32 • Kaushambi • Ghaziabad • National Capital Region Of Delhi • India • 201010 •

(A) This policy has been framed in accordance with the provisions of “The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013” and rules framed thereunder (hereinafter “the Act”). Accordingly, while the policy covers all the key aspects of the Act, for any further clarification reference shall always be made to the Act and the provisions of the Act shall prevail.

(B) This policy would be called as ‘ITIO Policy on Prevention of Sexual Harassment of women at workplace. This policy intends to provide protection against sexual harassment of women at workplace and the prevention and redressal of complaints of sexual harassment and matters related to it.

1.2. Scope and Applicability:

This policy applies to all categories of employees of the Organization, including all employees on rolls and workmen, temporary staff, trainees, consultants, advisers, interns and employees on contract at its workplace or at visits to partner organizations. It also includes any third party directly associated with ITIO. But are subjected to sexual harassment at the Premises (defined hereinafter) of the Company.

1.3. Definitions:

(A) “Complainant” means, in relation to a workplace, a woman or a man, of any age directly or indirectly associated with the company, who alleges to have been subjected to any act of sexual harassment by the respondent.

(B) “Respondent” means a person against whom the allegation of sexual harassment is made with the workplace of the ITIO by the Complainant.

(C) “Employer” means, and includes:

- i. Director and other members of the Management
- ii. Any person(s) or board or committee responsible for the formulation and administration of policies that enables management, supervision and control of the workplace.

(D) “Employee” includes all categories of employees either working part-time or full time:

- i. Employees on rolls;
- ii. Temporary employees;
- iii. Trainees & Interns
- iv. Contract employees;
- v. Consultants & Advisers

(E) “Sexual harassment” includes any one or more of the following unwelcome acts or behavior (whether directly or by implication) such as:

- i. Physical contact and advances, unwelcome communications or invitations,
- ii. Demand or request for sexual favors,
- iii. Sexually cultured remarks,
- iv. Showing pornography, making or posting sexual pranks, sexual teasing, sexual jokes, sexually demeaning or offensive pictures, cartoons or other materials through email, SMS, MMS etc
- v. Suggestive comment and jokes. Giving gifts or leaving objects that are sexually suggestive
- vi. Staring, leering,
- vii. Creating a hostile work environment

Viii. And any other unwelcome “sexually determined behavior” (physical, verbal or non-verbal conduct) of a sexual nature.

This is only an indicative list of the possible acts which could be treated as sexual harassment and is in no way intended to be construed as an exhaustive list.

(F) “Company Premises” shall include the following workplaces:

- i. All offices or other premises where the Organization’s activities is conducted.
- ii. All Organization-related activities performed at any other site away from the Organization’s premises or during travel to such other place.

ITIO Innovex Pvt Ltd

CIN U72300UP2015PTC070364 • GSTIN 09AADCE9392B1ZI • PAN AADCE9392B •

ITIO Tower • C 32 • Kaushambi • Ghaziabad • National Capital Region Of Delhi • India • 201010 •

- iii. Any external location visited by associates due to or during the course of their employment with the Company such as business locations of other Companies/entities, guest houses etc
 - iv. Any mode of transport provided by the Company (or a representative of the Company) for undertaking a journey to and from the aforementioned locations.
- (G) “Internal Complaints Committee (ICC)” means a Committee constituted by the employer for the purpose of dealing with all matters in relation to or connected with sexual harassment at the work place.

2. Internal Complaint Committee

2.1. Constitution of Complaint Committee:

- (A) The Employer has to constitute an Internal Complaints Committee for redressal of sexual harassment complaint. In accordance with the sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, the Internal Complaints Committee will comprise of the following:
- i. Chairperson (Presiding Officer)- Shall be a woman employed at a senior level at workplace amongst the employees
 - ii. Three members- Shall be amongst employees preferably committed to the cause of woman.
 - iii. One external Member who is possessing adequate expertise on gender equality and sexual harassment at work place.
 - iv. Provided that at least one-half of the total Members so nominated shall be women.

2.2. Tenure of the Internal Complaint Committee:

(A) The tenure of the committee will be for a period of three years from the date of formation. In the event vacancy arises due to resignation, voluntary withdrawal or otherwise by any member of ICC before the expiry of tenure, Employer shall exercise its right to reconstitute the committee within (15) fifteen working days from the date when such a vacancy arises.

(B) That after expiry of the said Tenure of three years, employer shall again constitute the committee according to this policy and the law of the land.

2.3 Powers of Internal Complaint Committee:

For ensuring the healthy and safe work environment as well as to determine any complaint raised, the ICC shall have the following powers:

- i. Summoning and enforcing the attendance of any person and examining him/her on oath.
- ii. Direct any person of the Company to produce or recover any document, mobile phone, laptop and any other material deemed necessary for the determination of the complaint.
- iii. Power to form a sub-committee on the receipt of any complaint.
- iv. To pass any other direction this deemed necessary for the determination of the case/complaint.

2.4 Roles & Responsibilities of ICC:

That ICC shall discharge the following responsibility in order to ensure healthy and safe environment:

- i. ICC shall ensure effective implementation of the Prevention of Sexual Harassment (POSH) policy of the organization.
- ii. ICC may at periodic intervals organize workshops and training programs on sexual harassment in conjunction with the Human Resources department for creating awareness within the company.
- iii. ICC may from time to time bring out internal publications on Prevention of Sexual harassment and also matters concerning implementation of this policy.
- iv. ICC shall prepare Annual Report on its functioning and submit the same to the employer every year.
- v. ICC shall conduct an inquiry into complaint according to the procedures established by law.
- vi. ICC shall ensure and supervise proper constitution and functioning of the Sub-Committee for investigation of complaints.
- vii. ICC shall take into consideration and discuss on each and every instance of sexual harassment that the organization may have come across, including during exit interviews, gossips, rumors.
- viii. ICC shall recommend to the employer to take appropriate preventive steps from time to time

3. Complaints for Sexual Harassment

3.1 How to File Complaint:

If any associate believes that she has been subjected to sexual harassment, such person may file a complaint with any member of the committee or send an email to

3.2 Procedure after receiving Complaint:

(A) The committee member on receiving a complaint will intimate the committee head. The committee head would arrange for a meeting within one week of receipt of the complaint for discussing the complaint raised.

(B) Complaints must be brought within 3 months of the incident of Sexual Harassment and within 180 calendar days for Ex-Associates of the Company. Complaints brought after that time period will not be pursued in the absence of some extraordinary circumstances. The determination of whether the complaint was timely or whether extraordinary circumstances exist to extend the complaint period must be made in conjunction with the Legal Team of ITIO.

(C) Every attempt will be made to get the Complainant to provide the complaint in writing. The complaint shall include the circumstances giving rise to the complaint, the dates of the alleged occurrences, and names of witnesses, if any. The complaint shall be signed by the Complainant. Complaints made anonymously or by a third party must also be investigated to the extent possible.

(D) Where the aggrieved associate is unable to make a complaint on account of her/his physical or mental incapacity or death or otherwise, her/his legal heir or such other person as may be prescribed may make a complaint within 3 months of the incident. A withdrawal of the complaint made or filed at any stage of the proceedings shall not preclude the ICC from proceeding with the inquiry and investigation of the case.

3.3 Inquiry Procedure:

(A) After receiving the Complaint, The ICC shall send either a copy of the complaint or summary of complaint (if complainant identity is not to be revealed to respondent) to the respondent within a period of 7 working days. The respondent shall file his/her reply to the Complaint along with supporting documents and evidences if any, and the names and addresses of the witnesses if any, within a period not exceeding 10 working days from the date of receipt of the complaint.

(B) During the inquiry, on the written request of the Complainant, the ICC can provide interim relief to the complainant. This interim relief includes:

- Transfer the Complainant or the Respondent to any other department or work place as the case may be.
- Prohibit the Respondent to contact, access the files or documents of the Complainant for a time being.
- Grant any other relief that the ICC seems just and fair in the interest of justice.

(C) The ICC also holds a right to terminate the inquiry proceedings or to give an ex-parte decision on the complaint, if the Aggrieved complainant or Respondent fails, without sufficient cause, to present herself or himself for 4 consecutive hearings convened by the Presiding Officer as the case may be, provided that such termination or ex-parte order may not be passed without giving a notice in writing, 15 days in advance, to the party concerned.

(D) The ICC shall conduct such investigations in a timely manner and shall submit a written report containing the findings and recommendations to the Employer as soon as possible and in any case, not later than 7 days from the date of completion of inquiry. The Employer shall act upon the recommendation within 30 days and communicate the same to the ICC. The inquiry report shall also be made available to concerned parties.

4. Mechanism to Be Adopted

4.1 Timeline for determining the Complaint:

(A) Inquiry should be completed within a period of 90 days from the date of receipt of the Complaint. When after the inquiry it is found that no case has been made out then no actions will be taken against the Respondent.

ITIO Innovex Pvt Ltd

CIN U72300UP2015PTC070364 • GSTIN 09AADCE9392B1ZI • PAN AADCE9392B •

ITIO Tower • C 32 • Kaushambi • Ghaziabad • National Capital Region Of Delhi • India • 201010 •

4.2 Conciliation Procedure:

(A) Once the complaint is received, before initiating the inquiry the committee may take steps to conciliate the complaint between the complainant and the respondent. This is only if requested by the aggrieved woman.

(B) In case a settlement is arrived at, the committee records & reports the same to the employer for taking appropriate action. Resolution through conciliation shall be happen within 2 weeks of receipt of complaint.

(C) The committee provides copies of the settlement to complainant & respondent. Once the action is implemented, no further inquiry is conducted, provided that no monetary settlement shall be made as a basis of conciliation.

4.3. Procedure when found Guilty:

(A) The ICC, in case if it finds the allegations against the respondent to be true, shall communicate the same to the Employer to take the following actions against the Respondent:

- i. Written apology;
- ii. Warning;
- iii. Reprimand or Censure;
- iv. Withholding of Promotion;
- v. Withholding of pay raise or increments;
- vi. Terminating the respondent from service;
- vii. Undergoing a counseling session or carrying out community service.
- viii. Monetary Settlement or Compensation by Respondent to Complainant.

ICC while determining the compensation will take into consideration of the following factors:

- a) The mental agony, pain, suffering and emotional distress caused to the complainant;
- b) the loss in the career opportunity due to the incident of sexual harassment;
- c) Medical expenses incurred by the complainant for physical or psychiatric treatment;
- d) the income and financial status of the respondent;
- e) Feasibility of such payment in lump sum or in installments
- f) Any other factors that ICC seems just and fair.

(B) If the Respondent in any way tries to tamper or interfere at any stage of inquiry then strict actions will be taken against him and the Company may also resort to take appropriate legal actions against the Respondent whether civil or criminal.

(C) Every employee who threatens or intimidates any person who has made complaint under this policy or any witness thereof shall be liable for disciplinary actions as per the rules of the ITIO.

4.4 Fake and Frivolous Complaint

(A) Where the committee arrives at the conclusion that the allegation against the respondent is malicious or the aggrieved woman or any other person making the complaint has made the complaint knowing it to be false or the aggrieved woman or any other person making the complaint has produced any forged or misleading document, it may recommend to the employer to take action against the woman or the person making the complaint. The action recommended should be similar to the ones proposed for the respondent in case of substantiated complaints.

4.5 Appeal

Any person aggrieved by the decision of the ICC and implementation by the Executive Committee may prefer an appeal within a period of 60 days from the date of receiving the report of the ICC before the appellate authority as notified under Clause 2(a) of the Industrial Employment (Standing Orders) Act, 1946 (20 of 1946) .

5. Obligations Of Employers And Employees

(A) An employer is subjected to the following duties:

- Provide safe working environment at the workplace;
- Communicate to its employees or display at any place in the workplace, penal consequences of sexual harassment;
- Organize workshops and training programs at regular levels;
- Assist in securing attendance of respondents and witnesses before the ICC;
- Provide assistance and means to a woman if she chooses to file a complaint under the Indian Penal Code or any other applicable law;
- Comply with the inquiry report of ICC
- And any other assistance required by the ICC, or legal department for conducting inquiries into complaints made against sexual harassment.

(B) When an employee sees any act of sexual harassment then it is obligatory for an employee to report such matter of sexual harassment to ICC.

6. Confidentiality

ITIO understands that it is difficult for the complainant to come forward with a complaint of sexual harassment and recognizes the complainant's interest in keeping the matter confidential. To protect the interests of the complainant, the accused person and others who may report incidents of sexual harassment, confidentiality shall be maintained throughout any investigatory process to the extent practicable and appropriate under each and every circumstance.

6.1 Access to Reports and Documents:

(A) All records of complaints, including contents of meetings, results of investigations and other relevant material shall be kept confidential by the Organization except where disclosure is required under disciplinary or other remedial processes.

7. Protection to Complainant / Victim

(A) ITIO is committed to ensuring that no employee who brings forward a sexual harassment concern is subject to any form of reprisal or retaliation. Any reprisal or retaliation shall be subject to disciplinary action.

(B) The ITIO shall ensure that complainant or witnesses are not victimized or discriminated against while dealing with complaints of sexual harassment. Any form of discrimination would result in disciplinary actions.

8. Training and Workshops

(A) ITIO will conduct programs and training for all its employee for the protection of women at workshop and it is obligatory for all the members of ITIO to undergo the training program formulated against sexual harassment at workplace.

(B) The programs and training shall be conducted twice a year by Legal department of the company.

9. Preparation of Yearly Report

(A) The ICC shall prepare an annual report and submit the same to the district officer (a summary of which shall be submitted to the State Government) which should inculcate the following details:

- a. Number of cases of sexual harassment received in a year;
- b. Number of complaints disposed off in a year;

ITIO Innovex Pvt Ltd

CIN U72300UP2015PTC070364 • GSTIN 09AADCE9392B1ZI • PAN AADCE9392B •

ITIO Tower • C 32 • Kaushambi • Ghaziabad • National Capital Region Of Delhi • India • 201010 •

- c. Number of cases pending for more than 90 (ninety) days;
- d. Number of workshops of awareness programs carried out against sexual harassment; and
- e. Nature of action being taken by the Executive Committee or the employer

10. Revisions To The Policy

(A) The ICC may review or modify this Policy after consulting the legal department of the Company, if so required, in order to make the enforcement of the Policy more expedient or to accommodate any changes in the law.

(B) That if any provision became inconsistent to the law of the land, in such case the provisions of Sexual Harassment of Women at workplace (Prevention, Prohibition and Redressal) Act, 2013

11. Conclusion

In conclusion, the ITIO reiterates its commitment to providing all

Its employees, a workplace free from harassment/ discrimination and where every employee is treated with dignity and respect.

ANNEXURE 1

Composition of Internal Complaint Committee

S No.	Name	Designation	Position in ICC
1.	Ankita Tiwari	HR	(Presiding Officer)
2.	Rupam Tyagi	HR	Committee Member
3.	Jyoti Verma	Admin Executive	Committee Member